

MyHOAAppeal - Educational worksheet

HOA Fine Schedules and Caps Explained

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about published schedules, daily caps, and unauthorized amounts.

Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of published schedules, daily caps, and unauthorized amounts.
- * Make the decision point explicit: Your appeal should answer whether the assessed amount matches adopted schedules with evidence.
- * Compare options deliberately: Know whether you are closer to Schedule-compliant, Above schedule, or No published schedule.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to published schedules.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger [Same day (30-90 min)]

Save the notice, portal message, invoice, or verbal summary that started the dispute about published schedules, daily caps, and unauthorized amounts. Note the date received.

Documents: Violation notice, invoice, or portal message; Envelope postmark or delivery receipt; Dated note of when you first learned of the dispute.

Avoid: Relying on a verbal warning without a written artifact; Forgetting to photograph the notice date and cited rule.

2. Pull controlling text [1-3 days]

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on published schedules, daily caps, and unauthorized amounts.

Documents: CC&R / rule pages cited in the notice; Current fine schedule; Bylaws appeal or hearing clause

Avoid: Arguing fairness before confirming the board cited a real rule; Using an outdated schedule that no longer matches the current CC&R.

3. Build the evidence spine [2-5 days]

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to whether the assessed amount matches adopted schedules.

Documents: Dated photos or maintenance logs; Correspondence export; Comparable-neighbor notes (when relevant); One-page summary of evidence.

Avoid: Photos without dates, landmarks, or consistent angles; Dumping unsorted emails instead of labeled exhibits.

4. Choose the procedural path [Per notice window (often 7-14 days)]

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around published schedules, daily caps, and unauthorized amounts.

Documents: Deadline calendar from the notice and bylaws; Draft remedy sentence (waive / reduce / re-notice / reverse); Proof of payment or protest.

Avoid: Missing the internal appeal deadline while still gathering evidence; Asking for conflicting remedies in the same letter.

5. Submit a written ask [1-2 hours to finalize + send]

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to whether the assessed amount matches adopted schedules, with exhibits attached.

Documents: Signed appeal or dispute letter; Indexed exhibits; Certified-mail / portal delivery proof

Avoid: Sending exhibits without a clear ask on the first page; Failing to keep delivery proof for the appeal packet.

6. Confirm the outcome in writing [1-7 days after hearing or board action]

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

Documents: Written decision or refusal-to-decide record; Updated ledger screenshot; Post-decision deadline calendar

Avoid: Assuming silence means the fine was waived; Paying without noting payment under protest when escalation continues.

== CHECKLIST ==

Documents on hand

[] Written notice or invoice tied to published schedules, daily caps, and unauthorized amounts

[] Current CC&Rs, rules, and fine schedule excerpts

[] Delivery proof (certified mail, portal export, or email headers)

Evidence quality

[] Dated materials that address whether the assessed amount matches adopted schedules

- [] One-page timeline of key events
- [] Exhibit index with short labels (A, B, C...)

Procedural safeguards

- [] Appeal / cure / hearing deadline calendared
- [] Clear written remedy (waive, reduce, re-notice, reverse)
- [] Plan for payment under protest if lien pressure rises

Before you stop working the file

- [] Confirm whether schedule-compliant or above schedule better describes your posture
- [] Save a PDF export of the full packet
- [] Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing published schedules, daily caps, and unauthorized amounts arrives.

Documents: Violation letter or invoice; Delivery proof / portal export

Avoid: Ignoring early inspection photos that later become exhibit A; Losing the envelope that shows the mailing date

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control whether the assessed amount matches adopted schedules.

Documents: CC&Rs and rules cited; Fine schedule; Prior correspondence on the same issue

Avoid: Starting to write before you have the controlling text; Mixing draft rules with recorded covenants

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Documents: Cure photos or vendor invoice; Written dispute letter if not curing; Delivery proof

Avoid: Curing without asking for written confirmation; Letting the cure window expire while waiting on a phone call

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on published schedules, daily caps, and unauthorized amounts; ask for a written decision.

Documents: Indexed exhibit packet; Hearing agenda or appearance confirmation; One-sentence remedy ask

Avoid: Showing up without copies for the board; Skipping a written decision request on the record

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Documents: Written decision letter; Updated ledger entry; Minutes request (if decision is oral only)

Avoid: Accepting an oral outcome without a dated writing; Missing post-decision escalation clocks

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around published schedules, daily caps, and unauthorized amounts.

Documents: Full appeal record to date; Collections / lien notice if any; ADR clause or counsel intake notes

Avoid: Escalating before the internal record is complete; Paying without preserving dispute rights when a lien is threatened

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on published schedules, daily caps, and unauthorized amounts. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering published schedules, daily caps, and unauthorized amounts?

- Yes - I have notices or governing excerpts -> go to quality

- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run

this tree for published schedules, daily caps, and unauthorized amounts. Do not rely on

memory alone.

- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about published schedules, daily caps, and unauthorized amounts.

Q (quality): Does your packet clearly address whether the assessed amount matches adopted schedules?

- Yes - defects and facts are indexed -> go to deadline

- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue published schedules, daily caps, and unauthorized amounts. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on published schedules, daily caps, and unauthorized amounts, and request a hearing or written decision in the same letter.

- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve published schedules, daily caps, and unauthorized amounts arguments even while clarifying timing.

- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Schedule-compliant | Above schedule | No published schedule

Typical signal

[Schedule-compliant] Clear written basis for schedule-compliant

[Above schedule] Partial or contested basis for above schedule

[No published schedule] High risk if you only have no published schedule

Owner priority

[Schedule-compliant] Preserve schedule-compliant with indexed proof

[Above schedule] Convert above schedule into a documented record

[No published schedule] Do not rely on no published schedule alone

Board / manager reaction

[Schedule-compliant] Harder to dismiss when exhibits are complete

[Above schedule] May stall or ask for more information

[No published schedule] Often treated as insufficient without follow-up writing

Next educational move

[Schedule-compliant] Advance the formal path for published schedules, daily caps, and unauthorized amounts

[Above schedule] Send a clarifying letter addressing whether the assessed amount matches adopted schedules

[No published schedule] Collect missing documents before arguing substance

Escalation risk if ignored

[Schedule-compliant] Lower if you stay on deadline

[Above schedule] Medium - ambiguity can harden into denial

[No published schedule] Higher - no published schedule gaps feed collections narratives

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